

Lease and Rental Agreement

This **Lease and Rental Agreement** entered on this the 1st day of February, 2025 at Mumbai,:

Between:

Mr. Ramesh verma , a resident of Mumbai s/o Mr. Raman Verma Aged about 36 years,
45, ABC Apartments, Juhu, Mumbai – 400049, Maharashtra

PAN No. ABJDP8302F

*(hereinafter referred to as “**the Lessor**”, which expression shall, wherever the context so requires or admits, mean and include and mean his heirs, executors and assigns)*

And:

Ms. Priya Sharma, d/o Mr. Prana Singh Sharma Aged about 30 years, a resident of 123,
LMN Apartments, Bangalore – 560001, Karnataka

PAN No. AVCPG1803G

*(hereinafter referred to as “**the Lessees**” which expression shall, wherever the context so requires or admits, mean and include his heirs, successors and executors)*

I. **WHEREAS**, Mr. Ramesh, a resident of Mumbai, is the absolute owner of a **2-bedroom apartment** located at **Flat No. 402, XYZ Residency, Andheri (West), Mumbai, Maharashtra** (hereinafter referred to as the "**Property**").

II. **WHEREAS**, Ms. Priya, a software engineer relocating from Bangalore, has approached Mr. Ramesh with a request to lease/rent the Property for **residential purposes**, and the Lessor has agreed to lease/rent the Property under the terms and conditions agreed upon by both parties.

III. **NOW, THEREFORE**, this Lease/Rent Agreement is entered into by and between the parties, and they mutually agree to abide by the terms and conditions set forth herein.

1. LEASE

1.1. In consideration of the rents hereby reserved and agreed to be paid by the Lessees and in accordance with the terms and conditions contained herein, the Lessor hereby grants by way of lease to the Lessees the **Schedule Property** (Flat No. 402, XYZ Residency, Andheri (West), Mumbai, Maharashtra), together with the right to develop and seek necessary sanctions from statutory authorities for conversion of the Schedule Property.

1.2. The Lessees shall bear all the charges for developing and seeking conversion of the Schedule Property. In the event that the Lessees vacate the Schedule Property, the Lessor shall refund the charges borne by the Lessees for developing and conversion of the Schedule Property.

1.3. The Lessees shall pay the Lessor a **monthly rent of ₹50,000/- (Rupees Fifty Thousand only)**, payable on or before the **5th of each month** via **bank transfer** to the account details provided by the Lessor.

1.4. The Lessees shall pay an **upfront security deposit of ₹1,50,000/- (Rupees One Lakh Fifty Thousand only)** before taking possession of the Property. The security deposit shall be **refunded** to the Lessees at the time of vacating the premises, subject to deductions for any outstanding dues or damages to the Property, if any.

1.5. In case of **delay in rent payment**, a **late fee of ₹1000 per day** shall be applicable after the due date.

1.6. The Lessees shall not **sublet, assign, or transfer** the lease without prior written consent from the Lessor.

2. DURATION OF THE LEASE

2.1. The Lessor agrees to lease the **Schedule Property** to the Lessee, and the Lessee agrees to take the same on lease for a **fixed term of 11 months**, commencing from **February 1, 2025, and ending on December 31, 2025**.

2.2. Upon expiry of the lease period, the Lessee shall vacate the premises unless a **mutual renewal agreement** is executed in writing between both parties. The Lessee shall intimate the Lessor **at least 60 days prior** to the lease expiry if they wish to extend the lease period. Any renewal shall be subject to revised rental terms and conditions as mutually agreed.

2.3. If the Lessee continues to occupy the premises beyond the lease term without a formal renewal, such occupancy shall be deemed **unauthorized**, and the Lessee shall be liable to pay a **penalty of ₹2000 per day** until vacating the premises or executing a renewal agreement.

3. SECURITY DEPOSIT

3.1. The Lessee shall pay a **refundable security deposit of ₹1,50,000/-** (Rupees One Lakh Fifty Thousand only) to the Lessor at the time of signing this Agreement. The security deposit shall be held by the Lessor as security for the due performance of the terms and conditions of this Lease.

3.2. Upon the expiration or termination of the lease, the Lessor shall refund the security deposit to the Lessee **within 15 days**, subject to deductions for any unpaid rent, utility bills, damages beyond normal wear and tear, or any other outstanding dues payable by the Lessee under this Agreement.

3.3. In the event of any **dispute regarding deductions**, the Lessor shall provide a detailed statement of deductions along with necessary supporting documents, and the balance amount, if any, shall be refunded to the Lessee within the stipulated period.

3.4. The security deposit shall **not be adjusted** against the last month's rent unless expressly agreed in writing by the Lessor.

4. SUB-LETTING

4.1. The Lessee shall **not sublet, assign, transfer, mortgage, or part with possession** of any part or the whole of the leased premises to any third party **without the prior written consent** of the Lessor.

4.2. Any unauthorized subletting or transfer shall be deemed a **material breach** of this Agreement, entitling the Lessor to **terminate the lease immediately** and take appropriate legal action.

5. PAYMENT OF STAMP DUTY

5.1. The **cost of stamp duty** and any other applicable charges payable on this Lease Agreement shall be **borne solely by the Lessee** as per the prevailing laws.

6. FORCE MAJEURE

6.1. Neither party shall be held liable for any delay or failure in performing their obligations under this Agreement due to events beyond their reasonable control, including but not limited to **acts of God, natural disasters, earthquakes, floods, fire, war, riots, civil disturbances, strikes, pandemics, government-imposed restrictions, or any other unforeseen circumstances** that prevent the full fulfillment of contractual obligations.

6.2. In the event of a **force majeure** occurrence, the affected party shall promptly notify the other party in writing, specifying the nature of the event and its expected impact on performance. The obligations of the affected party shall be **suspended** for the duration of such an event, and both parties shall make reasonable efforts to resume performance once the circumstances permit.

6.3. If the force majeure event continues for a period exceeding **90 days**, either party shall have the right to terminate this Agreement without any liability, provided that the Lessee vacates the premises and the Lessor refunds any refundable deposits, subject to applicable deductions.

7. DEVELOPMENT AND MODIFICATIONS

7.1. The Lessee shall not undertake any **structural modifications, alterations, or permanent construction** on the leased premises **without the prior written consent** of the Lessor. Any approved modifications shall be carried out **at the Lessee's expense** and in strict compliance with all applicable **laws, building regulations, and municipal approvals**.

7.2. Upon **termination or expiry** of the lease, the Lessee shall **restore the premises to its original condition**, unless otherwise agreed in writing by the Lessor. The Lessor **shall not be liable** to reimburse any expenses incurred by the Lessee for modifications, improvements, or additions made to the leased premises, unless **expressly agreed upon in writing**.

8. PET POLICY

8.1. The Lessee is **permitted to keep one small pet** on the leased premises, provided that the Lessee **informs the Lessor in advance** before bringing the pet onto the property.

8.2. The Lessee shall ensure that the pet **does not cause any damage** to the premises or **disturb other residents**. Any damage caused by the pet shall be the **sole responsibility of the Lessee**, and the cost of repairs or cleaning shall be deducted from the security deposit or recovered separately by the Lessor.

9. LESSOR'S COVENANTS

9.1 The Lessor is the rightful owner, having purchased the leased residential property located at Flat No. 402, XYZ Residency, Andheri (West), Mumbai, Maharashtra (hereinafter referred to as the "Schedule Property") vide Sale Deed dated 01-02-2025, registered as Document 123/345, in the office of the Sub-Registrar _____. The Lessor is in peaceful possession of the Schedule Property, which is free from all encumbrances of any nature, and has, as of this day, granted the Lessee peaceful possession of the same.

9.2 The Lessor certifies that the Schedule Property is not currently notified for expansion of road or any other civic amenity and that the site in its entirety may be utilized by the Lessee without any constraint or hindrance for residential purposes as permitted under this Agreement.

9.3 The Lessor undertakes that all taxes, duties, and statutory levies in respect of the Schedule Property have been duly paid up to date. The Lessor further covenants to ensure that the Lessee remains free from any claims, statutory or otherwise, related to the use of the Schedule Property. Should the Lessee be required to make any payment to statutory authorities on this account, the same shall be reimbursed by the Lessor or adjusted against the monthly lease rent.

9.4 The Lessor warrants that the Lessee shall have uninterrupted access to all essential services and utilities, including electricity and water connections, and shall provide necessary

No Objection Certificates (NOCs) or consents as may be required for obtaining or maintaining such services.

9.5 The Lessor shall ensure that the Schedule Property remains in a habitable condition and shall undertake necessary structural repairs, if required, during the tenure of this lease, provided such repairs do not arise from the negligence or misuse by the Lessee.

9.6 Upon the expiration or termination of this Lease Agreement, the Lessee shall return possession of the Schedule Property to the Lessor in good condition, subject to normal wear and tear. The Lessor shall not impose any additional charges on the Lessee for the same, except for any damages beyond reasonable wear and tear.

9.7 The Lessor shall indemnify and hold harmless the Lessee from any losses, liabilities, or claims arising from any disputes, encumbrances, or legal defects associated with the Schedule Property that may hinder the Lessee's peaceful enjoyment and occupation of the premises.

9.8 The Lessor hereby covenants that as long as the Lessee continues to pay the rent regularly and observes all terms of this Agreement, the Lessee shall be entitled to peacefully occupy and use the Schedule Property without any interference, obstruction, or hindrance from the Lessor or any third party claiming through or under the Lessor.

9.9 The Lessor shall comply with all local, municipal, and statutory regulations concerning the Schedule Property and ensure that there are no violations or legal impediments that could adversely affect the Lessee's rights under this Agreement.

9.10 In the event of any breach of the above covenants by the Lessor, the Lessee shall have the right to seek legal remedies, including termination of the lease, without prejudice to any claims for damages or costs incurred.

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10. LESSEE'S COVENANTS

10.1. That the Lessee shall be responsible for keeping the leased Schedule Property in good condition;

10.2. That the Schedule Property has been taken on lease by the Lessee from the Lessor for the purpose referred to above.

11. NOTICE

11.1. Any notice or other communication required or permitted under this Lease Deed shall be in writing and shall be served by registered post, hand delivery, or courier service.

Additionally, a copy of such notice may be sent via email for record purposes. Notices shall be addressed as follows:

- **To the Lessor:**

Mr. Ramesh

45, ABC Apartments, Juhu, Mumbai – 400049, Maharashtra

Email: ramesh.landlord@email.com

- **To the Lessee:**

Ms. Priya

123, LMN Apartments, Bangalore – 560001, Karnataka

Email: priya.tenant@email.com

11.2. Any change in the above addresses or email IDs shall be communicated in writing to the other party at least 7 (seven) days in advance.

11.3. A notice shall be deemed to have been duly served:

- (a) If sent by registered post, upon the expiry of 3 (three) business days from the date of dispatch;
- (b) If delivered by hand or courier, upon acknowledgment of receipt by the receiving party;
- (c) If sent by email, upon successful transmission, provided that a hard copy is also sent via registered post or courier.

12. AUTHORITY

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12.1. The Lessor and the Lessee hereby mutually represent and warrant to each other that the persons executing this Lease Deed on their behalf have full and complete authority to do so.

The execution of this Lease Deed by such authorized representatives constitutes a valid, legal, and binding contractual obligation enforceable against both the Lessor and the Lessee in accordance with the terms set forth herein.

13. TERMINATION

13.1. In the event that the Lessee fails or neglects to pay the rent and/or any other charges specified in this Lease Deed for a period of six (6) consecutive months or for any six (6) months within a calendar year, or commits a breach of any of the terms and conditions stipulated herein, the Lessor shall have the right to terminate this Lease Deed and re-enter the Schedule Property, subject to providing a written notice of default and granting a reasonable opportunity to the Lessee to rectify such default within thirty (30) days from the date of receipt of such notice.

13.2. Either party may terminate this Lease Deed by providing three (3) months' prior written notice to the other party, without assigning any reason whatsoever.

13.3. Notwithstanding anything contained herein, either party may terminate this Lease Deed by providing two (2) months' prior written notice. In the event of early termination by the Lessee, the security deposit paid by the Lessee may be forfeited unless otherwise mutually agreed in writing between the parties.

13.4. Upon termination of this Lease Deed, the Lessee shall vacate and hand over peaceful possession of the Schedule Property to the Lessor in the same condition as it was at the commencement of the lease, subject to reasonable wear and tear. The Lessee shall remove all its belongings, fixtures, and equipment from the premises, failing which the Lessor shall be entitled to remove the same at the cost and risk of the Lessee.

13.5. The right to terminate this Lease Deed as contained in this clause shall be in addition to any other rights of termination available to either party under this Lease Deed or under applicable laws and shall not be construed to be in derogation thereof.

14. JURISDICTION

14.1. This Lease Deed shall be governed by and construed in accordance with the laws of India.

14.2. Any dispute arising out of or in connection with this Lease Deed, including any question regarding its existence, validity, or termination, shall be referred to and finally resolved by arbitration in Bengaluru, in accordance with the provisions of the Arbitration and Conciliation Act, 1996, and any amendments or re-enactments thereof for the time being in force.

14.3. The arbitration shall be conducted by a Sole Arbitrator, who shall be appointed mutually by both Parties. In the event the Parties fail to mutually agree on the appointment of the Sole Arbitrator within thirty (30) days of the dispute arising, the appointment shall be made in accordance with the provisions of the Arbitration and Conciliation Act, 1996.

14.4. The seat and venue of arbitration shall be Bengaluru, Karnataka, and the arbitration proceedings shall be conducted in the English language.

14.5. Subject to the arbitration clause, the courts in Bengaluru, Karnataka, shall have exclusive jurisdiction over any disputes arising out of or in connection with this Lease Deed.

15. DISPUTE RESOLUTION

15.1. Any disputes, controversies, or claims arising out of or in connection with this Lease Deed, including any question regarding its interpretation, performance, breach, or termination, shall be resolved through arbitration in Mumbai, in accordance with the provisions of the Arbitration and Conciliation Act, 1996, and any amendments or re-enactments thereof for the time being in force.

15.2. The arbitration shall be conducted by a Sole Arbitrator, who shall be appointed mutually by both Parties. If the Parties fail to mutually agree on the appointment of the Sole Arbitrator within thirty (30) days from the date of the dispute arising, the appointment shall be made in accordance with the provisions of the Arbitration and Conciliation Act, 1996.

15.3. The seat and venue of arbitration shall be Mumbai, Maharashtra, and the arbitration proceedings shall be conducted in the English language.

15.4. The arbitral award shall be final and binding on both Parties.

15.5. Subject to the arbitration clause, the courts in Mumbai, Maharashtra, shall have exclusive jurisdiction over any disputes arising out of or in connection with this Lease Deed.

16. MISCELLANEOUS

16.1. This Lease Deed constitutes the entire agreement between the Lessor and the Lessee and supersedes all prior discussions, understandings, representations, and agreements, whether written or oral, between the Parties with respect to the subject matter hereof.

16.2. No modification, amendment, or waiver of any provision of this Lease Deed shall be valid unless made in writing and duly executed by both Parties.

16.3. If any provision of this Lease Deed is found to be invalid or unenforceable under applicable law, such provision shall be severed from this Lease Deed, and the remaining provisions shall continue to be valid and enforceable to the fullest extent permitted by law.

16.4. The failure of either Party to exercise any right or remedy under this Lease Deed shall not constitute a waiver of such right or remedy or any other rights or remedies available under law.

IN WITNESS WHEREOF, the parties hereto have executed this Lease and Rental Agreement as of the date first written above.

Signed by:

Mr. Ramesh (Lessor)

Address: 45, ABC Apartments, Juhu, Mumbai, Maharashtra – 400049

Email: ramesh.official@email.com

Signature: _____

Ms. Priya (Lessee)

Address: 123, LMN Apartments, Bangalore, Karnataka – 560001

Email: priya.official@email.com

Signature: _____

Witnesses:

1. **Name:** Anushka singh

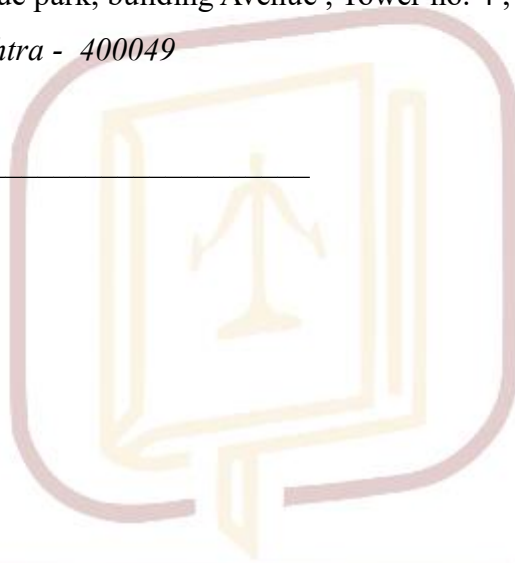
Address: near avenue park, building Avenue , Tower no. 4 , apartment no. 16 *Juhu,*
Mumbai, Maharashtra - 400049

Signature: _____

2. **Name:** Kasish verma

Address: near avenue park, building Avenue , Tower no. 4 , apartment no. 18 *Juhu,*
Mumbai, Maharashtra - 400049

Signature: _____



LEGAL SPECS

Lawyers in Making.